

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

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Present: Sh. Lokender Singh Raghav, Special Public Prosecutor for the complainant-SFIO.

None for accused Nos. 1 to 70 companies

None for accused Nos. 71 to 78 companies

Accused No.79 company, represented through accused No.115 Vivek Hari Vyasi who is on interim bail.

Accused Nos. 80 company, represented through accused Naveen Kumar (No. 139).

Accused Nos. 81 and 82 companies, represented through accused Surender Singh (No. 140) who is on interim bail

Accused No.83 present in Court

Sh. Somender, AR on behalf of accused No. 84 & 85 **company**

Accused Nos. 86, 87 and 88 companies, represented through accused Ravi Tak (No. 166) (**sought exemption today**)

Accused No. 89 company represented through AR in person

Accused Nos. 90 to 93 companies, represented through accused No.115 Vivek Hari Vyasi **who is on interim bail**

Accused Nos. 94 to 97 companies, represented through Shri Rahul, **AR, in person**

Accused No. 98 company, represented through Shri Naresh Kumar, **AR, in person**

Accused Nos. 99 and 100 companies, represented through accused Raj Kumar Modi (No. 176) who is **on interim bail**

Accused No. 101 company, represented through AR, in person

Accused No. 102 company, represented through Shri Deepak, AR, in person

None for accused No.103 company

Accused No. 104 company, represented through Shri Vicky, AR , in person

Accused No. 105 company represented through Shri Anoop, AR , in person

Accused No. 106 company represented through Shri Kashi Nath Jha, AR, in person

None for accused No. 107

Accused No. 108 company represented through AR (**sought exemption today**)

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Accused No. 109 to 112 companies, represented through ARs, in person

Accused No. 113/Mukesh Modi in custody (sought exemption) represented through counsel

Accused No.114 Rahul Virendra Modi in custody, (sought exemption) represented through counsel

Accused No.115 Vivek Harivyasi on bail

Accused No.117 Priyanka Modi **in person**, represented by Sh Manl Mittra, Advocate

Accused No.118, 127, 129 and 141 in person

Accused Vinay Kumpawat (No. 119) already declared proclaimed person vod 27.07.2022

Accused No. 120/Vibhav Lodha **is on bail in this case**, but in custody in other case (not produced before the Court)

Proceedings qua accused No.122 Virender Modi stood abated vide order dated 13.11.2024

Accused No. 123/Rohit Modi (sought exemption today) represented through counsel

Accused No.124 Neha Ghelawat (sought exemption today)

Accused No. 125/Rajeshwar Singh, **who is on bail in this case but in custody in other case, not produced before the Court by concerned jail authority at Jodhpur ‘**

Accused No.126/Bharat Modi, **who is on bail in this case but in custody in other case, (not produced before the Court by concerned jail authority)**

Accused Jainam Rathod (No.130) in person.

Acused No. 131/Ishwar Singh Sindal, **who is on bail in this case but in custody in other case (not produced before the Court)**

Accused No.132 Meenakshi Modi (sought exemption today) represented through counsel

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Accused No.134/Vivek Purohit, **who is on bail in this case but in custody in other case (not produced before the Court)**

Accused No. No.135/ Siddharth Chauhan already declared **proclaimed person/offender** vide order dated 22.07.2025

Accused Akshat Singh (No. 136) **on bail in person**, represented by Shri Amol Gupta, Advocate

Accused Shinder Pal Singh (No. 137) already **declared proclaimed person** vod 03.05.2024

Accused Naveen Kumar (No.139) **on bail**, represented by Sh Ishaan Mukherjee and Sh Vinayak Gupta, Advocates

Accused Surender Singh (No. 140) **on interim bail, in person**

Accused No. 142/Bharat Das Vaishnav, **who is on bail in this case but in custody in other case (not produced before the Court by concerned jail authority)**

Accused No.143/Sudhir Punia is **on bail** in person

Accused Joydeep Das Gupta (No.144) and Lovekush Sharma (No.145), **on bail**, but **granted personal exemption(s)** till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Leena Harivyasi (No. 146) **on bail**, exempted till further orders vide order dated 03.05.2024 reprinted through counsel

Accused Vimal Sanwermal Sharma(No.147), **on bail**, in person.

Accused Avanish Kumar Tyagi (No.148) **on bail**, but **granted personal exemption** till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Vijay Shukla (No. 149), **on interim bail**, in person

Accused Poonam Madan(No. 151) **on bail**, but **granted personal exemption** till further orders vide order dated

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22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Bharat Kumar Mardia (No. 154) on bail, **exempted permanently**, represented by Sh. Peeyush Jain, Advocate.

Proceedings qua accused Mahendra Kumar Tak (155) stood abated vide order dated 25.03.2022.

Accused Praveen Maheshwari (No.156) and Rajeev Maheshwari (No.157) on bail, but **exempted from personal appearance till further order(s) vide order 31.01.2020**, represented through Shri Piyush Jain, Advocate

Accused No.160 Shiv Raj Sharma in peson

Accused Megha Chauhan No.(No. 163 **sought exemption today**) accused Indu Tak (No. 164 **sought exemption today**), accused Ravi Tak (No. 166 **sought exemption today**) on bail, represented by Sh Neeraj Dev Gaur, Advocate.

Accused Rajeev Verma (No.167), Sushil Maloo (No.168) and Rajendra Singh Bhandari (No.169) on bail, but **granted permanent exemption** vide order(s) dated 04.09.2019.

Accused Sudhir Mehta(No170) **on bail**, (sought exemption today) represented by Sh Neeraj Dev Gaur, Advocate.

Accused No.171 Raj Kumar Bohra **in person today**, however, **permanently exempted** till further orders.

Accused No.173 Peeyush Aggarwal on bail represented by Sh Prashant Yadav, Advocate

Accused Paramvir Singh Sangwan(No.174) **on bail**, but **granted personal exemption till further order vide order dated 19.02.2021**, represented by Shri Dinesh Kumar, Advocate.

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Proceedings qua accused Vijay Jindal (175) stood abated vide order dated 25.03.2022.

Accused Raj Kumar Modi (No. 176), **on interim bail**, in person.

Accused No.177/Rajiv Kumar Rana **in custody**, produced by the concerned jail authority

Accused Mahesh Dutt Sharma(No.178), **on bail**, (sought exemption today) represented through counsel

Accused Ichchhita Dungarwal (No.180) and Neha Kataria (No.181) **permanently exempted** till further orders vide 22.11.2019, represented by Sh Nitin Desodya, Advocate

Accused Mahesh Kumar Tak (No. 187) **on bail**, represented by Sh Neeraj Dev Gaur, Advocate.

Shri Amit Rathee, Advocate has filed power of attorney on behalf of accused No.177 Rajiv Rana, who is present in Court.

Accused present in Court

Accused No.79, 80, 81, 82, 83, 84, 85, 89, 90, 91, 92, 93, 94 to 97,98,99,100,101,102,104,105,106,109,110,111,112,115,116,117,118,127,129, 130,136, 139, 140, 141, 143, 146,147, 149, 151, 154, 156,157, 173, 176, 177(custody), 187 are present in the Court.

2. **Accused No.160 Shiv Raj Sharma**

(i) Accused No.160 filed an application for exemption from personal appearance wherein it is mentioned that becoming an approver was allowed by this Court vide order dated 03.05.2024 and statement of the applicant has already been recorded before the Duty Magistrate. It is further submitted that due to ill health he is not in a position to travel. Heard. Allowed.

(ii). An application for bringing on record accused No.160 Shiv Raj Sharma as Approver is filed by the prosecution. It is submitted that vide order dated 19.09.2025 the complainant was directed to submit its response to the application under Section 306 Cr.P.C preferred by accused No.160 Shiv Raj Sharma for becoming an approver. In

pursuant to the order dated 27.02.2025 passed by this Court statement of the said accused has been recorded on 27.03.2025 under section 183 BNSS (164 Cr.P.C.). It is further submitted that on perusing the said statement it found disclosing the role of the said accused in the financial crime and the said statement also discloses on whose instruction the said accused signed in the capacity of a director. Further, the said disclosures emerged to be in conformity with the findings of the investigation as enumerated in the investigation report dated 09.05.2019. It is further found that the said accused is making a full and true disclosure of the whole of the circumstances within his knowledge relating to the offence. Accordingly the ingredients of section 306 Cr.P.C are met and prayer is made to consider accused No.160 Shiv Raj Sharma as an Approver and trial against rest of the accused persons may be proceed. Adjourned for consideration.

(iii). **Meantime, learned Special Public Prosecutor is also directed to bring on record amended title, thereby reflecting the names of the persons who have been granted pardon, as prosecution witness, as per the order(s) passed by learned Predecessor Court.**

3. Order passed by Hon'ble Supreme Court in Review Petition

3(i). On the last of hearing NBW's were ordered to be issued against accused No.116 Nitin Rathore, accused No.118 Jinender Vyas, accused No.121 Paras Bolia, accused No.127 Abhay K.Shah, accused No.128 Manish Chaudhary, accused No.129 Deepak Shrimali, accused No.133 Prakash Chand Purohit, accused No.138 Gurbir Singh Sandhu, accused No.141 Aditya Sarda, accused No.152 Nazima Khan, accused No.153 Shabbir Khan, accused No.162 Naveen Chaudhary, accused No.165 Shyam Bihari Gupta, accused No.172 Saurabh Tak. The learned counsel for accused persons have submitted that the Hon'ble Supreme Court vide order dated 09.04.2025 passed in Criminal Appeal No.1872 of 2025 (SLP (Crl.) No.13956 of 2023 has directed not to take

coercive action. Request is made not to issue NBW's in view of order dated 09.04.2026 passed by Hon'ble Supreme Court in Review Petition.

The learned counsel for accused persons have filed separate exemption application(s) on behalf of accused No.127 Abhey Kumar Sha and learned counsel for accused No.152 and 153 submitted that the Hon'ble Supreme Court vide order dated 21.11.2025, Review Petition (Crl.) No.378/2025 passed in Criminal Appeal No.1872 of 2025 has directed not to take coercive action in collective review petition. NBW's postponed till awaiting order of Hon'ble Supreme Court.

4. **EXEMPTION APPLICATIONS:**

4(i) Separate applications seeking exemption from personal appearance(s) are filed on behalf of accused No.103 Dharmender AR, No.108 AR of the company, No.113 Mukesh Modi, No.114 Rahul Modi, No.123 Rohit Modi, No.124 Neha Ghemawat Modi, No.132 Meenakshi Modi, No.163 Megha, No.164 Indu Tak, No.166 Ravi Tak, No.170 Sudhir Mehta, No.178 Mahesh Dutt Shama.

4(ii) After going through the contents of applications of accused **No.103, 108, 124, 163, 164, 166, 170 and 178** the same stands allowed and the aforesaid accused persons are exempted from personal appearance for today only.

5. **Accused No.113 Mukesh Modi and 114 Rahul Modi**

5(i) Accused No.113 Mukesh Modi and accused No.114 Rahul Modi have not been produced by the jail authorities Jodhpur, Rajasthan. Their counsel has moved separate applications for their exemption from personal appearance on medical ground.

5(ii) At this stage, an application has been filed by the prosecution to bring on the record orders dated 22.12.2025 passed by Hon'ble Punjab and Haryana High Court in CRM-M-31296 of 2024 titled as Rahul Virender Modi Vs SFIO and CRM-M-26815 of 2024 titled as Mukesh Modi Vs SFIO. It is mentioned in the application and submitted by Special Learned

Prosecutor that accused No.113 Mukesh Modi and No.114 Rahul Modi were in judicial custody of this Court. It has come into knowledge of the prosecution that both of these accused have been released on interim bail by the Hon'ble High Court of Rajasthan and jail authority Jodhpur have released both the accused without any order passed from this Trial Court. The trial court has also sought explanation from the jail authorities, however jail authority failed to give any explanation. It is further submitted that the bail applications of both the accused have been dismissed by Hon'ble Punjab and Haryana High Court vide order dated 22.12.2025 in the above mentioned CRM's. It is further submitted that these orders are required to be placed on record as the Hon'ble High Court has directed the trial court to proceed against the petitioners in accordance with law to secure their presence. It is prayed to take on record both the orders dated 22.12.2025 and issue NBW's against No.113 and 114.

5(iii) It is submitted in the application filed on behalf of accused No.113 Mukesh Modi vide order dated 07.11.2025 the Hon'ble High Court of Judicator for Rajasthan, at Jodhpur the interim bail of accused Mukesh Modi has been extended for a further period of four months in S.B Criminal Writ Petition 2334/2025. The learned counsel attach the photocopies of medical prescription dated 03.01.2026 and 04.01.2026.

5(iv) Similarly, in application for exemption of personal appearance of accused No.114 Rahul Modi on medical ground, the order dated 16.12.2025 passed in S.B Criminal Writ Petition 1269/2025 alongwith photocopies of medical prescription dated 22.10.2025, 27.11.2025, 29.11.2025. Vide order dated 16.12.2025, the interim bail has been extended for a period of 90 days.

5(v) As per the orders dated 22.12.2025 placed by prosecution passed by Hon'ble Punjab and Hayana High Court vide which the bail applications of accused No.113 and 114 CRM-M-31296-2024 and CRM-26815-2024 have been dismissed. The Hon'ble High Court while dismissing their bail applications has passed the following order clarifying

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that “20. it is, however, clarified that the observation made hereinabove shall not be construed as an expression of opinion on the merits of the case and shall not influence the outcome of the trial.

21. It is further clarified that since as per the custody certificate, the petitioner is interim bail till 07.03.2026, in pursuance of some orders passed by Rajasthan High Court at any point of time, therefore, the Court of learned Special Judge may proceed against the petitioner in accordance with law to secure his presence.’

5(vi) Hence, in view of the orders passed by Hon’ble Pujab and Haryana High Court no regular bail or interim bail has been granted to accused No.113 and 114 in the present complaint case which is pending in the jurisdiction of the Session Division, Gurugram, State of Haryana. Further from persual of file, it reflects from zimni orders dated 13.06.2019 that accused No.113 and 114 were transferred from Bhondsi Jail to Rajasthan without premission of Court. This order reads as under:-

“Today the case was fixed for presence of accused Mukesh Modi and Rahul Modi and for further proceedings. However, both the accused have not been produced by the District Jail, Gurugram. On the contrary, it is informed by the Senior Standing Counsel for complainant-SFIO that Rajasthan Police has taken both the accused to Jaipur in some other case FIR No.24 of 2018 under Sections 420, 406, 409, 467, 468,471, 477A, 120B of the IPC registered at Police Station Special Operations Group (SOG) Rajasthan Jaipur and are in police custody till 15.06.2019. An application of SHO concerned of Jaipur Police was also sent through a Constable by said SHO. However, first of all the Superintendent District Jail, Gurugram was required to ask Jaipur Police to seek the permission of this Court before transferring the custody of the accused to the other State Police or to inform this Court but no such process has been adopted by the jail authorities. Even otherwise, even if the Rajasthan Police has taken the accused in their case on the basis of some production warrant, they are bound to produce the accused before this Court today.’

5(vii) In view of this, the exemption applications moved by accused No.113 and 114 are hereby dismissed. Bail bonds and surety bonds already furnished by them stand forfeited on account of their absence and as such NBW's be issued against them to secure their presence. The genuineness of photocopies of medical documents attached by accused No.113 and 114 be investigated. Also the medical checkup of both the accused No.113 and 114 be conducted from AIIMS, Delhi.

Accused No.132 Meenakshi Modi

6. Further the applications moved by accused No.132 Meenakshi Modi who is stated to be wife of accused No.113 Mukesh Modi, on the ground of taking care of accused No.113 is **dismissed. Bail bonds and surety bonds already furnished by her stand forfeited on account of her absence and as such NBW's be issued against her to secure her presence.**

Accused No.123 Rohit Modi

7. So far the exemption application for personal appearance of accused No.123 Rohit Modi, it is moved on the ground that his interim bail application has been extended by the Hon'ble High Court jurisdiction for Rajasthan at Jodhpur vide order dated 09.12.2025 for a further period of 120 days to look after his wife who has undergone a surgery on 28.11.2025 and is currently on bed rest. Also copy of treatment sheet of patient Shakuntla Bane has been moved. Accused No.123 Rohit Modi is on bail in this case but he has failed to appear despite the fact he was on interim bail in other cases in the State of Rajasthan and was supposed to appear in the present case. Hence, no ground is made out to allow the said application and the same stands rejected. **Bail bonds and surety bonds already furnished by him stand forfeited on account of his absence and as such NBW's be issued against him to secure his presence.**

8 PRODUCTION WARRANTS OF ACCUSED No.120,125, 126,131,134,142

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8(i) Accused **134/Vivek Purohit** and accused No. **120/Vibhav Lodha**, who are on bail in this case, but in custody in other case, not produced by concerned jail authority. Production warrants of the said accused be issued directing concerned jail authority to produce said accused before the Court through VC on the adjourned date if they remains custody in other case.

8(ii). Accused No. **131/Ishwar Singh Sindal** on bail in this case but custody in other case, not produced by concerned jail authority. His production warrants be issued directing Superintendent, concerned jail Jodhpur, Rajasthan to produce the said accused before the Court through VC on the adjourned date.

8(iii). Accused No.**126/Bharat Modi**, No. **142/Bharat Das Vaishnav**, who are on bail in this case, but custody in other case(s), not produced before the Court through video conferencing by concerned jail authority. Production warrants of the said accused be issued directing concerned jail authority to produce said accused before the Court through VC on the adjourned date if they remains custody in other case.

8(iv). Accused No. **125/Rajeshwar Singh**, who is on bail in this case but in custody in other case, not produced before the Court through video conferencing by concerned jail authority. Production warrants of the said accused be issued directing concerned jail authority to produce said accused before the Court through VC on the adjourned date if he remains custody in other case.

The timings of producing the accused would be at 02.00 P.M. on the next date of hearing on video-conferencing. Ahlmad is directed to give note in red-ink on the production warrant for the compliance of order for appearance, if on VC, at remote point.

10. Application of personal exemption from appearance by accused No.124, 130, 133

9(i). Reply to the application of accused No.130 Jainam Rathod seeking permanent exemption from personal appearance, filed by

SFIO/complainant. Copy supplied. Arguments shall also be heard on date fixed.

9(ii). Reply to the application(s) of accused No.124 Neha Ghemawat Modi and accused No.132 Meenakshi, seeking permanent exemption from personal appearance, filed. Copy supplied. Arguments shall also be heard on date fixed.

9(iii). Arguments on two separate applications, seeking permanent exemption from appearance(s) before the court, moved on behalf of accused no. 117/Priyanka Modi and accused No.133 Prakash Chandra Purohit, not advanced. Arguments on these applications shall be heard on the adjourned date.

9(v). Reply to the application for renewal of passport of applicant Peeyush Aggarwal filed on 16.10.2025 vide IA-14-2025 not filed. Reply to the said application be filed on 02.12.2025.

15. Reply to the application for Change of AR of accused No.112 not filed. Reply, if any, be filed on **18.03.2026**.

Accused No.135

10. Application for placing on record subsequent developments and facts and for permitting the applicant-accused No.135 to appear, surrender and furnish bail bonds and for enlargement on regular bail without being taken into judicial custody in view of law laid down by the Hon'ble Supreme Court. The applicant-accused No.135 himself has not come present before the Court today, therefore the present application is not maintainable and stands disposed of.

11. In pursuance of the directions passed by Hon'ble High Court in order dated 22.12.2025 in CRM-M No.26815 and CRM-M-31296 of 2024 to expedite the trial by making all possible efforts which may include separation of trial against the accused whose presence has not been secured so far no exemption application shall be entertained except in extreme unavoidable emergency.

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It is made clear to all concerned that the case will be taken up at 12:30 P.M. on the date of hearing of the case. No accused will make request to the Court to mark his presence or ask to entertain any of his application before 12:30 P.M nor any contact either telephonically or physically to the Court staff will be made by any accused, otherwise serious note will be taken and action will taken, as per law.

Date of order: 07.01.2026

(naveen)

(Dr. Gagan Geet Kaur)

ASJ, Gurugram

UID No.HR0482